

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index #  
Date of filing:

-----X  
SHAKIEM FRASER,

Plaintiff,

Plaintiff designates  
New York County as the  
place of trial

-against-

Basis of the venue is  
Locus of Occurrence

THE CITY OF NEW YORK, POLICE OFFICER DAN-Shield  
#15216 and JOHN DOES-Police Officers as yet unidentified,

**SUMMONS**

Defendants.

-----X  
County of New York

**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

**DEFENDANT'S ADDRESS:**

**THE CITY OF NEW YORK**  
100 Church Street  
New York, NY 10007

**PLAINTIFF'S ATTORNEYS:**

**RUBENSTEIN & RYNECKI, ESQS.**  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

**POLICE OFFICER DAN-SHIELD #15216  
and Tax Registry #945644**

c/o New York City Police Department, 28<sup>th</sup>  
Precinct  
2271-89 Frederick Douglass Blvd.  
New York, NY 10027

Dated: Brooklyn, New York  
September 8, 2020

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
SHAKIEM FRASER,

Index No.:

Plaintiff,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER DAN-Shield  
#15216 and JOHN DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiff by his attorneys, **RUBENSTEIN & RYNECKI, ESQS.**, complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION  
ON BEHALF OF SHAKIEM FRASER**

1. That at all times hereinafter mentioned, the plaintiff, **SHAKIEM FRASER**, was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on November 21, 2019, and within the time prescribed by law, a

sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on January 15, 2020, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, as agents, servants and/or employees.

7. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **SHAKIEM FRASER**, was lawfully present at or about the sidewalk at or about the intersection at West 115<sup>th</sup> Street and 7<sup>th</sup> Avenue in the County of New York, City and State of New York.

8. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **SHAKIEM FRASER**, was assaulted, battered and falsely arrested by defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforementioned location.

9. That on October 4, 2019, and at all times hereinafter mentioned and upon

information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief the defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, who assaulted, battered and falsely arrested the plaintiff, **SHAKIEM FRASER**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff, **SHAKIEM FRASER**, was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, **SHAKIEM FRASER**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF SHAKIEM FRASER**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable

care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, who assaulted, battered, falsely arrested and violated the civil rights of the plaintiff, **SHAKIEM FRASER**.

16. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, **SHAKIEM FRASER**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF SHAKIEM FRASER**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, were working within the scope of their employment and authority with the defendant, **THE CITY OF NEW YORK**, when they arrested and confined the plaintiff **SHAKIEM FRASER**.

20. That on October 4, 2019, and at all times hereinafter mentioned and upon

information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, **SHAKIEM FRASER**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, the plaintiff, **SHAKIEM FRASER**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF SHAKIEM FRASER**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, **SHAKIEM FRASER**.

25. That the defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, **SHAKIEM FRASER**, sustained

damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF SHAKIEM FRASER**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, **SHAKIEM FRASER**, through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **SHAKIEM FRASER**.

30. That as a result of said intentional and negligent acts, the plaintiff, **SHAKIEM FRASER**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, **SHAKIEM FRASER**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF SHAKIEM FRASER**

32. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **SHAKIEM FRASER**.

35. That on October 4, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, **SHAKIEM FRASER**, sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, **SHAKIEM FRASER**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF SHAKIEM FRASER**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at



length herein.

38. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **SHAKIEM FRASER**.

39. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

40. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

41. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

42. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

43. As a direct and proximate result of this unlawful conduct, the plaintiff, **SHAKIEM FRASER**, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF SHAKIEM FRASER**

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

45. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

46. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER DAN-SHIELD #15216** and **JOHN DOES-Police Officers** as yet unidentified, herein-above alleged.

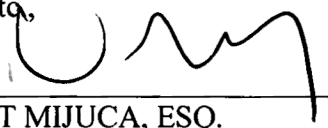
47. By the reason of the foregoing, the plaintiff, **SHAKIEM FRASER**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and

exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Court on the **Sixth** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, **SHAKIEM FRASER**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eight** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
September 8, 2020

Yours, etc,



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ROBERT MIJUCA, ESQ.  
**RUBENSTEIN & RYNECKI, ESQS.**  
*Attorneys for Plaintiff*  
**SHAKIEM FRASER**  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020

**ATTORNEY'S VERIFICATION**

**ROBERT MIJUCA**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at **RUBENSTEIN & RYNECKI**, attorneys of record for Plaintiff, **SHAKIEM FRASER**, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York  
September 8, 2020

  
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**ROBERT MIJUCA**